

DPDP 2023

Digital Personal Data Protection Act, 2023

Digital Personal Data Protection Act (DPDP), 2023

User Query :

I signed up for an online shopping application and provided my name, phone number, delivery address and purchase information for placing orders. I later started receiving targeted calls and messages from unrelated financial and insurance companies that appeared to know details about my purchases. The shopping platform says that customer information may have been shared with marketing partners, but I do not remember giving clear consent for this use. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 15/Digital Personal Data Protection Act (DPDP), 2023

Prepared by :

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Date :

29 August 2026

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 4 — Grounds for processing personal data

Processing requires a lawful basis under the Act.

Section 5 — Notice

Notice must describe the personal data and purpose of processing.

Section 6 (1) — Consent

Consent must be free, specific, informed, unconditional and unambiguous and for the specified purpose.

Section 6 (4)-(6) — Withdrawal of consent and cessation of processing

Relevant if the user withdraws consent; cessation is subject to statutory exceptions.

Section 11 — Right to access information about personal data

May support obtaining information about processing and sharing.

Section 13 — Right of grievance redressal

Provides a grievance route against the Data Fiduciary/Consent Manager.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The central issue is purpose/consent: data supplied for shopping/order fulfilment appears to have been shared for unrelated marketing without clear consent. Sections 4-6 are therefore the main doctrinal provisions, with sections 11 and 13 supporting transparency/grievance rights.

✓ STRENGTHS & RIGHTS

- 1 The scenario directly contrasts the stated shopping purpose with later targeted third-party marketing.

✗ RISKS & OBLIGATIONS

- 1 Do not overstate the present enforceability of these duties before their notified commencement date.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.
2. For the benchmark, label these as doctrinal/prospective until 13 May 2027.

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